

Rajeshbhai Muljibhai Patel v. State of Gujarat (2020)

Rebuttal of Presumption under Section 139 NI Act

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Citation & Forum: (2020) 3 SCC 794 | Gujarat High Court / Supreme Court

Core Legal Principle: Core Ratio: Accused can rebut statutory presumption on preponderance of probabilities.

Accused is not required to step into the witness box; standard of proof is not beyond reasonable doubt.

Key Precedent Note: Vital citation in negotiable instrument litigation in Gujarat trial courts.